

Amendment No. 1 to HB0675

White
Signature of Sponsor

AMEND Senate Bill No. 415*

House Bill No. 675

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 49-6-3004, is amended by adding the following language as a new subsection:

(j) The state board of education shall promulgate rules to allow LEAs and public charter schools to meet the requirements of subdivision (a)(1) by providing a minimum number of instructional hours per school year. The rules must be promulgated according to the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 2. Tennessee Code Annotated, Title 49, Chapter 1, Part 2, is amended by adding the following as a new section:

(a) The department shall revise Tennessee's response to instruction and intervention (RTI²) framework manual to only require LEAs and public charter schools to:

(1) Screen a student three (3) times per school year if the student is enrolled in any of the grades kindergarten through three (K-3); and

(2) Screen a student in grades four through eight (4-8) if the student is "at risk," as defined in Tennessee's RTI² framework manual.

(b) The department shall allow LEAs and public charter schools to meet the intervention requirements in Tennessee's RTI² framework manual by providing high-dosage, low-ratio tutoring services to students identified for intervention. The tutoring services provided must meet the tutoring requirements established by the department.

(c) This section does not supersede an LEA's or public charter school's obligation to comply with the Individuals with Disabilities Education Act (20 U.S.C. § 1400 et seq.) or Section 504 of the Rehabilitation Act (29 U.S.C. § 794).

SECTION 3. Tennessee Code Annotated, Section 49-6-6002, is amended by redesignating subsection (b) as subsection (c) and adding the following as a new subsection (b):

(b)

(1) The state shall not require students in any of the grades nine through twelve (9-12) to be administered a statewide standardized assessment, except for the following:

(A) A statewide standardized assessment in science must be administered to students once in grades ten through twelve (10-12); and

(B) The postsecondary readiness assessment approved by the commissioner of education for purposes of § 49-6-6001(b) must be administered to students in each of the grades nine through eleven (9-11) to assess student performance in mathematics and English language arts.

(2) The department shall procure any good or service selected or approved by the department to effectuate this subsection (b) competitively and in compliance with all state laws and administrative rules regarding the procurement of goods and services by state agencies, including §§ 12-3-101 - 12-3-104. The department shall submit all contracts for the procurement of any good or service selected or approved by the department to effectuate this subsection (b) to the fiscal review committee of the general assembly for review according to the timelines and requirements established in § 4-56-107(b)(5)(A).

SECTION 4. Tennessee Code Annotated, Section 49-6-6001, is amended by deleting subsection (a) and substituting instead the following:

(a)

(1) To receive a full diploma upon graduation from high school, a student must meet the requirements set forth by the state board of education; provided, that the board shall not require students to be administered an assessment other than the assessments required in § 49-6-6002(b) as a requirement for graduation.

(2) The state board of education shall authorize a student who is working toward completing a career and technical education elective focus to substitute up to three (3) career and technical education course credits for the required chemistry course credit, world language course credit, and Algebra II course credit necessary to earn a full diploma upon graduation from high school as set forth by the state board of education pursuant to subdivision (a)(1). A career and technical course credit cannot be substituted pursuant to this subdivision (a)(2) unless it is equivalent to the course credit for which it is being substituted, as determined by the state board.

SECTION 5. Tennessee Code Annotated, Section 49-1-617, is amended by deleting subsection (b) and substituting:

(b) Notwithstanding subsection (a), if an LEA does not receive its students' scores on the statewide standardized assessments required in § 49-6-6002(b) at least five (5) instructional days before the end of the course, then the LEA may choose not to include its students' statewide standardized assessment scores, including all statewide standardized assessment scores for students in grades nine through twelve (9-12), in the students' final grades in the subject areas of mathematics, English language arts, and science.

SECTION 6. Tennessee Code Annotated, Section 49-6-6001, is amended by deleting subsection (j) and substituting instead the following:

(j) A student whose individualized education program (IEP) or section 504 plan under the Rehabilitation Act of 1973 (29 U.S.C. § 701 et seq.) allows for testing accommodations must be allowed to use the same testing accommodations while taking an assessment under the Tennessee comprehensive assessment program (TCAP) or a statewide standardized assessment required in § 49-6-6002; provided, that the accommodation does not invalidate the assessment.

SECTION 7. Tennessee Code Annotated, Section 49-6-6006, is amended by deleting the language "for students to satisfy graduation requirements established by the state board of education pursuant to § 49-6-6001(a)".

SECTION 8. The Tennessee department of education shall, no later than January 1, 2026, submit a request to the United States department of education to amend this state's Every Student Succeeds Act (ESSA) plan to remove all end-of-course assessment requirements for students in grades nine through twelve (9-12), except for the end-of-course assessment required in science to comply with Section 3(b)(1)(A), and to allow a postsecondary readiness assessment approved by the commissioner of education for purposes of Tennessee Code Annotated, Section 49-6-6001(b), to be annually administered to students in grades nine through eleven (9-11) to assess student performance in mathematics and English language arts, and for student performance on such assessments to be used for student, school, and district accountability purposes.

SECTION 9.

(a) Section 2 of this act takes effect July 1, 2025, the public welfare requiring it.

(b) Sections 3-7 of this act take effect on the thirtieth day immediately following the date on which the United States department of education approves the amendment to this state's Every Student Succeeds Act (ESSA) plan submitted pursuant to Section 8 of this act, the public welfare requiring it. The commissioner of education shall notify the executive secretary of the Tennessee Code Commission in writing of the date on which the United States department of education approved the amendment to this state's

ESSA plan. If the United States department of education does not approve the amendment to this state's ESSA plan, then Sections 3-7 of this act have no effect.

(c) All other sections of this act take effect upon becoming a law, the public welfare requiring it.